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Direct Marketing: Overview

The Saudi guide to marketing and compliance

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Direct Marketing: Overview (Saudi Arabia)

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A Practice Note providing an overview of the legal issues surrounding direct marketing in the Kingdom of Saudi Arabia. This Note considers the statutes, regulations, and voluntary codes of practice that apply to direct marketing activities, including telemarketing, voicemail, fax, direct mail, electronic communications (including email), as well as means of consumer recourse, and regulatory enforcement.

Direct marketing consists of communications by which a business tries to sell or market certain goods or services directly to consumers, without the use of traditional media (such as radio, newspapers, and television), out-of-home advertising (such as billboards), or general online methods (like banner ads). These communications are often unsolicited.

Direct marketing communications are sent by mail, telephone, text message, fax, and email straight to the recipient consumer. The direct marketing landscape in Saudi Arabia is growing, driven by the country's rapid digital transformation and increasing internet penetration. Businesses are leveraging various direct marketing channels, including email, social media, mail, telephone, and text messages to engage with consumers more directly and effectively. The rise of e-commerce and digital platforms has further fuelled the adoption of direct marketing strategies, enabling businesses to reach specific target audiences with tailored messages and offers.

This Note focuses on the legal issues relating to direct marketing in Saudi Arabia. It discusses:

- Key legal and regulatory framework in Saudi Arabia, including laws relating to data privacy, consumer protection, and advertising.
- Self-regulation and voluntary codes of practice.
- The different types of direct marketing and the rules governing them (including telemarketing, fax, direct mail, electronic communications such as SMS text and email).
- Consumer recourse and regulatory enforcement.

This Note also provides tips and best practices for conducting a compliant direct marketing campaign.

Legal and Regulatory Framework

There is no single law or regulation governing direct marketing in Saudi Arabia. Instead, it is regulated by a combination of data privacy, consumer protection, and advertising legislation, which regulate the mode of delivery and content of direct marketing communications.

There are stringent regulatory rules on the collection, use, and sharing of consumer Personal Data for marketing purposes. Businesses must obtain explicit consent from consumers before using their Personal Data for marketing purposes, ensuring transparency and protecting privacy.

There are also regulatory safeguards against deceptive, misleading, or unfair practices in direct marketing. Marketing content must comply with consumer protection regulations and advertising laws, which are designed to prevent unethical marketing practices.

Legislation and Regulation

Various laws and regulations cut across all types of direct marketing, including:

- The [Personal Data Protection Law, Royal Decree No. M/19 of 1443, as amended pursuant to Royal Decree No. M/48 of 1444](#), as amended pursuant to Royal Decree No. M/48 of 1444 (the PDPL) (see [Data Privacy Laws](#)).
- The Guide to Consumer Rights and Responsibilities issued by the Ministry of Commerce in Saudi Arabia (the Consumer Guide) (see [Consumer Protection Laws](#)).
- Advertising laws (see [Fundamental Advertising Principles](#)).

Direct marketing is also governed by various self-regulatory programs and voluntary codes and raises certain cross-border legal issues (see [Self-Regulation](#) and [Cross-Border Issues](#)).

For information on laws that are specific to how direct marketing is delivered, see [Types of Direct Marketing](#).

Data Privacy Laws

The general data privacy principles in the Kingdom of Saudi Arabia are governed by:

- The PDPL.
- The [Implementing Regulation of the PDPL](#) (the IR).
- The [Regulation on Personal Data Transfer outside the Kingdom](#) (the PDTR and together with the IR, the PDPRs).

The [Saudi Data & AI Authority](#) (SDAIA) granted organisations a one-year transition period to fully comply with the PDPL and its associated regulations. This period expired on 14 September 2024.

The PDPL and PDPRs regulate how Personal Data is collected, processed, and shared, ensuring the protection of individuals' privacy rights.

Personal data is defined in the PDPL as

"any data, regardless of its source or form, that may lead to identifying an individual specifically, or that may directly or indirectly make it possible to identify an individual, including name, personal identification number, addresses, contact numbers, license numbers, records, personal assets, bank and credit card numbers, photos and videos of an individual, and any other data of personal nature."

The PDPL mainly deals with:

- Processing of Personal Data.
- Consent of the individual to whom the Personal Data relates (the Data Subject).
- Withdrawal of consent.

The IR defines direct marketing as "communicating with the [Data Subject] by any physical or electronic means directly with the aim of directing a marketing material, including but not limited to advertisements or promotional offers" (Article 1(2), IR). However, it should be noted, that actions which constitute direct marketing implicate several additional laws and regulations (discussed further below) even when direct marketing is not expressly referenced.

Processing of Personal Data

Processing personal data refers to "any operation carried out on Personal Data by any means, whether manual or automated, including collecting, recording, saving, indexing, organising, formatting, storing, modifying, updating, consolidating, retrieving, using, disclosing, transmitting, publishing, sharing, linking, blocking, erasing and destroying data"(Article 1, PDPL).

Personal Data must be obtained directly from the individual concerned and, subject to limited exceptions (see [Data Privacy Laws](#)), can only be processed for the purposes for which it was initially collected. The intended use of the personal data must be directly connected to the objectives set by the controller and must comply with all relevant legal requirements (Article 10, PDPL), including the following:

- The manner of processing must be "direct, clear and secure, and shall not involve any deception, misleading or extortion" (Article 11.2, PDPL).
- The personal data collected must be restricted to the minimum amount necessary to fulfil the purpose of the data collection (Article 11.3, PDPL).
- If the personal data collected is no longer necessary for the purpose for which it has been collected, the controller must cease collecting such personal data and destroy the personal data collected (Article 11.4, PDPL).
- Personal data can be processed for marketing purposes if the collection is undertaken from the Data Subject directly and otherwise in compliance with the PDPL (Article 26, PDPL).

Consent of Data Subject

Personal data may not be processed, nor may the purpose of processing Personal Data be changed, without the consent of the Data Subject (Article 5, PDPL). The following also apply:

- The Data Subject must give their explicit consent. Consent is considered explicit if:
 - it is given by the Data Subject in a form that clearly indicates that the Data Subject approves the processing of their Personal Data;
 - it is given in a manner that cannot be interpreted otherwise; and
 - given in a manner that can be proven (that is, in writing).
- (Article 1.9, IR.)
- The Data Subject must consent voluntarily and with a full understanding of what they consent to. This means clearly communicating why their personal data is needed, how it will be used (for example, for direct marketing), who will have access to it, and their rights regarding their personal data. Consent must also be specific to the purpose and expressed through a clear action, for example ticking a box or signing a form (Article 11, IR).
 - The IR also sets out the following conditions for obtaining a recipient's consent for the purpose of sending advertising or awareness materials:
 - consent must be given freely and may not be obtained using misleading methods;
 - the recipient must be able to specify the options related to advertising or awareness material subject to consent; and
 - the recipient's consent must be documented in a manner allowing future verification (that is, in writing), similar to the provability requirement for obtaining explicit consent.

(Article 28, IR.)

Apart from informational materials sent by public entities, a controller cannot use personal means of communication, including an individual's postal or email address, to send advertising or awareness materials, unless the following conditions are met:

- The controller obtains the consent of the recipient pursuant to Article 28 of the IR as described above.
- The controller provides a clear mechanism that enables the recipient to express their desire to stop receiving such materials. This mechanism must be easy, straightforward, and no more difficult than consenting to receive such materials.
- The sender's identity is clearly stated; anonymisation is prohibited.
- The controller immediately stops sending the material on the recipient's request.
- Stopping receipt of the material is free of charge.
- The controller keeps evidence of the recipient's consent to receive the materials.

(Article 25, PDPL; Article 28, IR.)

Withdrawal of Consent

Once a Data Subject provides their consent to have their personal data processed, they may revoke their consent at any time (Article 5(2), PDPL; Article 12(1), IR). A Data Subject must also have the right to unsubscribe or opt-out from receiving direct marketing (Article 29, IR).

Organisations must establish procedures that allow for the withdrawal of consent and ensure that withdrawing consent is as easy or easier than obtaining consent. (Articles 12 and 29, IR).



Read our full overview
of Saudi Arabia's
direct marketing regulations
on Practical Law ME website
or contact the authors directly.